

		Moving plaintiff shall give notice of this ruling.
59.	Maranwe v. Saunders & Associates, APC 2025-01499956	The demurrer and motion to strike by defendants Saunders & Associates, APC, Vasili Papas, Gary Saunders, and Morena Elias are CONTINUED to July 20, 2026 at 2:00 p.m. in Dept. C28. Plaintiff's motion for sanctions is also continued to that same date. Defendants' demurrer and motion to strike were originally heard on 3-16-26, and continued on that date to allow moving defendants to file declarations compliant with Code Civ. Proc., §§ 430.41 and 435.5, with plaintiff ordered to give notice. (Defendants did not appear on 3-16-26.) (ROA 57 [3-16-26 minute order].) However, there is no record that plaintiff gave notice as ordered. And defendants failed to file the ordered declarations. Further, there is no proof of service of plaintiff's opposition to the demurrer and motion to strike. (ROA 52.) There is also no proof of service of plaintiff's motion for sanctions. (ROA 46, 48.) There is no responsive pleading by defendants to the opposition to the demurrer and motion to strike, or to the motion for sanctions. (See <i>Carlton v. Quint</i> (2000) 77 Cal.App.4th 690, 698 [response on merits can waive service defect].) Accordingly, all three motions are continued. As to the demurrer and motion to strike, the Court orders the parties to engage in meet and confer efforts in compliance with Code Civ. Proc., §§ 430.41 and 435.5 within 10 days of today's date, and orders counsel for moving defendants to file a supplemental declaration demonstrating such compliance at least five court days prior to the continued hearing. Plaintiff is ordered to serve his opposition to the demurrer and motion to strike (ROA 52) on defendant within five court days of today, and to file proof of service of same at least five court days prior to the continued hearing date. Any reply may be filed and served per Code Civ. Proc., § 1005, subd. (b). As to plaintiff's motion for sanctions, plaintiff is ordered to serve the motion (ROA 46, 48) on defendant within five court days of today's date, and to file proof of service of same at least five court days prior to the continued hearing date. Any opposition and/or reply may be filed and served per Code Civ. Proc., § 1005, subd. (b). Plaintiff is also cautioned to file proper proofs of service in the future.

		The case management conference is also continued to July 20, 2026 at 2:00 p.m. Clerk shall give notice of this ruling.
60.	Rhee v. Lee 2023-01327410	Defendant Carole Lee's motion for summary judgment is DENIED. Defendant Lee has not met her initial burden to show that this action has no merit; that plaintiff cannot prove an element or some elements of a cause of action; or that a complete defense is established as a matter of law entitling defendant to judgment. <i>C.C.P.</i> § 437c (p) (2), and <i>Hunter v. Pacific Mechanical Corp.</i> (1995) 37 Cal.App.4th 1282, 1287. Lee offered no evidence in support of the motion. Code of Civil Procedure § 437c(b)(1) explicitly requires that summary judgment motions "shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken." Further, Lee has not submitted a Separate Statement in support of her motion, in contravention of Code of Civil Procedure section 437c(b)(1) which explicitly requires "[t]he supporting papers shall include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed." Each material fact stated must be followed by a reference to the supporting evidence. <i>C.C.P.</i> § 437c. Lee does submit some documents in support with her reply to this motion, but those documents were not considered by the court. As explained in <i>San Diego Watercrafts, Inc. v. Wells Fargo Bank</i>, (2002) 102 Cal.App.4th 308, a moving party may not rely on new evidence filed with its reply papers. See also <i>Moore v. William Jessup University</i>, (2015) 243 Cal.App.4th 427, wherein the court reiterated that generally a party moving for summary judgment may not rely on new evidence filed with its reply papers. Finally, the documents proffered in reply are not accompanied by a verified translation. California Rules of Court, Rule 3.1110 specifically provides that "[e]xhibits written in a foreign language must be accompanied by an English translation, certified under oath by a qualified interpreter." There is no certification under oath by the interpreter of the subject documents. As a result, these documents are of no evidentiary value. Defendant Lee shall give notice of this ruling.